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DEPARTMENT: 204
Hearing: 06/26/2024 9:00 am

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/08/2024
Clerk of the Court
BY: LESLIE GOMEZ
Deputy Clerk

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE CITY AND COUNTY OF SAN FRANCISCO

In the Matter of: JUCUTAN FAMILY TRUST Dated January 29, 1997, Evelyn Jucutan and Edwin Jucutan, Co-Trustees	NO. _____ PTR-24-307302 PETITION TO REMOVE CO-TRUSTEE [Probate Code Sections 15642 and 17200(b)(10] Hearing Date: Time: Dept.:

Evelyn Jucutan, as Co-Trustee and beneficiary of the Jucutan Family Trust dated January 29, 1997, ("Trust") hereby presents her Petition to Remove Co-Trustee Edwin Jucutan ("Mr. Jucutan") as follows:

1. Petitioner Evelyn Jucutan is the daughter of Terry T. Jucutan and stepdaughter of Milagros P. Jucutan, as Trustors of the Trust ("Petitioner"). Petitioner is also the Co-Trustee of the Trust. Mr. Jucutan is the other co-Trustee of the Trust.

2. Terry T. Jucutan died on October 27, 2000. Milagros P.Jucutan died

on July 26 2021. The Jucutans were survived by six children, namely Petitioner, Mr. Jucutan, Evangeline Jucutan, Eliser Jucutan, Eleanor Agbayani, and Elizbeth Cabanilla, all of whom are the beneficiaries of the Trust.

3. Ever since the passing of Milagros P. Jucutan, Petitioner has been attempting to serve as Co-Trustee of the Trust. However, Mr. Jucutan has thwarted her efforts and wrongfully refuses to properly work with Petitioner to administer the Trust. Specifically, Mr. Jucutan wrongfully refuses to communicate with Petitioner or to acknowledge his duties as Co-Trustee of the Trust despite the Petitioner's numerous requests. Furthermore, despite the Petitioner's numerous requests, Mr. Jucutan refuses to resign as Co-Trustee despite the fact that he has taken no steps to act as Co-Trustee of the Trust or to comply with his duties as Co-Trustee of the Trust.

4. The main asset of the Trust is the single family residence located at 2190 Revere Avenue, San Francisco, CA, ("Revere Property"). Mr. Jucutan resides in the Revere Property and wrongly has refused, and continues to wrongfully refuse, to take the proper actions to change the title to the Revere Property and to transfer title to the Trust beneficiaries as required by the Trust despite repeated demands by the Petitioner.

5. A trustee may be removed on a petition of a settlor, co-trustee or beneficiary under Prob. Section 17200 (Prob. Code Section 15642(a)).

6. The statutory grounds for removal of a trustee by the court include (i)

where hostility or lack of cooperation among co-trustees impairs the administration of the trust and (ii) where the trustee fails or declines to act (Prob. Code Sections 15642(b)(3) and (4).

7. Hostility between the trustee and the beneficiaries that impairs the administration of the trust may provide good cause for removal. *Estate of Gilmaker* (1962) 57 Cal.2d 627, 632; *Overell v. Overell* (1926) 78 Cal.App.251; *Brown v. Memorial Nat'l Home Foundation* (1958) 162 Cal.App.2d 513. Mr. Jucutan's continued wrongful refusal to honor and comply with his duties as Co-Trustee are causing damage to the Trust beneficiaries which includes the Petitioner.

8. Moreover, a trustee is subject to removal whenever is private interests conflict with his trust duties. A trustee may not, by the slightest impropriety, seek any advantage from the beneficiary. *Estate of Vokal* (1953) 121 Cal.App. 2d 252. Nor may the trustee wield power for the trustee's own "aggrandizement, preference or advantage" to the detriment of the beneficiary. *Jones v. H.F. Ahmanson & Co.* (1969) 1 Cal.3d 93; *Van de Kamp v. Bank of America* (1998) 204 Cal.App.3d 819.

9. As Co-Trustee, Mr. Jucutan has a duty to work with the Petitioner and to administer the Trust according to the Trust instrument (Prob. Code Section 16000). In the instant case, upon the death of the surviving spouse, the Co-Trustee had a duty to work with the Petitioner to divide the estate and distribute the assets according to the Trust's terms. Paragraph C of ARTICLE FIVE of the Trust.

10. The Petitioner has been unable to administer the Trust and divide and distribute the assets because of Mr. Jucutan's continued wrongful refusal to honor and comply with his duties as Co-Trustee. "The law . . . does not require an

executor or trustee to proceed 'as quickly as possible'; it requires him to proceed without 'unreasonable delay [Citation]. *Estate of Germond* (1971) 4 Cal.3d 573,580.

11. A trustee owes trust beneficiaries a fiduciary duty, which can consist of several specific tasks. These include the duty of loyalty, the duty to act with ordinary care with regard to trust assets, the duty to act impartially with regard to trust beneficiaries, the duty to collect trust assets, and the duty to administer the Trust according to its terms (Prob. Code Sections 16000-16014). Mr. Jucutan has breached all of the aforementioned duties.

12. Based on Mr. Jucutan's continued wrongful acts and breach of his duties as Co-Trustee of the Trust, in accordance with Prob. Code Section 17200(b)(10), Petitioner brings this Petition to remove Mr. Jucutan immediately as Co-Trustee of the Trust for breaches of trust (Prob. Code Section 16400). Paragraph A of ARTICLE XII of the Trust provides, in pertinent part: "In the event either of them (i.e., the successor Co-Trustees) should become incompetent or otherwise be unable or unwilling to serve, then the other shall serve alone as Trustee hereof."

13. In addition, Petitioner brings this Petition to surcharge Mr. Jucutan for his breaches of trust (Prob. Code Sections 16400 and 17200(b)(12)). Remedies for breach of trust include any loss in the value of the trust estate resulting from the breach of trust with interest (Prob. Code Sections 16440(a)(1) and 16441). In this case, Petitioner seeks lost rental income on the Revere Property.

14. The following persons entitled to notice of these proceedings are:

Edwin Jucutan 2190 Revere Street San Francisco, CA 94124 Co-Trustee and Beneficiary	Eliser Jucutan 2190 Revere Street San Francisco, CA 94124 Beneficiary

Evangeline Jucutan
2190 Revere Street
San Francisco, CA 94124
Beneficiary

Elizabeth Cabanilla
849 Foothill Drive
Vallejo, CA 94591
Beneficiary

Eleanor Agbayani
2701 Blossom Circle
Stockton, CA 95212
Beneficiary

15. No request for special notice has been filed in this matter.

WHEREFORE, the Petitioner requests that the Court make the following orders:

1. That Mr. Jucutan be removed immediately as Co-Trustee of the Trust.

2. That the Petitioner be confirmed as the sole successor Trustee of the Trust.

3. That Mr. Jucutan be surcharged in an amount to be proven at trial for his breaches of trust, including, but not limited to making the Revere Property income productive.

4. For reasonable attorneys' fees and costs.

5. For such other and further relief as the Court may deem proper.

Dated: May 7, 2024.

Evelyn Jucutan
Petitioner

Patricia Kennedy Fyle
Attorney for Petitioner

VERIFICATION

The undersigned is the Petitioner in the above-entitled proceeding. I have read the foregoing Petition and know the contents thereof. The same is true of my own knowledge except as to those matters that are stated in it on my own information and belief, and as to those matters I believe it to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct and that this declaration was executed on May 7, 2024, at Hayward, CA.

Evelyn Jucutan

Evelyn Jucutan